

Calendar Line 4

Case Name: *John Vincent Santos v. Ford Motor Company, et al.*

Case No.: 24CV453671

Before the Court is Defendant Ford Motor Company's ("Defendant" or "Ford") motion for summary adjudication in its favor and against Plaintiff John Vincent Santos ("Plaintiff"). Pursuant to California Rule of Court 3.1308, the Court issues its tentative ruling as follows:

I. BACKGROUND & FORD'S UNDISPUTED MATERIAL FACTS

This is an action for violations of the Song-Beverly Warranty Act ("Song-Beverly" or the "Act") (Civ. Code, §§ 1790 et seq.). Plaintiff alleges that he purchased a vehicle manufactured and/or distributed by Ford (the "Vehicle") and that various defects manifested during the applicable warranty period, including but not limited to engine defects. (Complaint, ¶¶ 12, 13.) Based on these alleged violations, he initiated the instant action with the filing of the Complaint on December 10, 2024, asserting claims for: (1) violation of Civil Code § 1793.2, subd. (d); (2) violation of Civil Code § 1793.2, subd. (b); (3) violation of Civil Code § 1793.2, subd. (a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; (6) fraudulent inducement-concealment.¹

According to the materials submitted by Ford in support of its motion, on October 19, 2022, Plaintiff purchased the Vehicle, a new 2022 Ford Maverick. (Defendant's Separate Statement of Undisputed Material Facts in Support of Motion for Summary Adjudication ("UMF"), No. 1.) In his claim for fraud, Plaintiff alleges that the Vehicle's engine suffered from "one or more defects that can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine" (the "Engine Defect") and that prior to the sale of the Vehicle, Ford "knew, or should have known, about the Engine Defect through its exclusive knowledge of non-public, internal data about the Engine Defect" and actively concealed its existence from Plaintiff and/or failed to disclose it to him. (UMF Nos. 3-5.)

On February 9, 2026, Ford propounded written discovery on Plaintiff which included special interrogatories and requests for production of documents and, in part, sought all facts, persons with information, and documents to support Plaintiff's fraud claim. (UMF No. 6.) Plaintiff served his written responses on March 13, 2026 and his 15-page document production on March 16, 2026. (UMF Nos. 7, 8.)

Defendant filed the instant motion for summary adjudication of the sixth cause of action on March 26, 2026. No opposition has been filed by Plaintiff.

II. ANALYSIS

A. Burden of Proof

¹ All claims are asserted against Ford, excluding the fifth for negligent repair, which was asserted against Will Tiesiera Ford Mercury. Plaintiff dismissed Will Tiesiera Ford Mercury from this action on May 12, 2025.

“A defendant seeking summary judgment [or adjudication] must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72 [internal citations omitted].)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil & Brown, Cal. Prac. Guide; Civ. Proc. Before Trial (The Rutter Group 2014) ¶ 10:241, p. 10-104, citing *Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 334.) “The moving party’s declaration and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to resolve any evidentiary doubts or ambiguities in plaintiff’s (opposing party’s) favor.’” (*Id.*, ¶ 10:241.20, p. 10-105, citing *Johnson v. American Standard, Inc.* (2008) 43 Cal.4th 56, 64.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion).” (*Id.*, ¶ 10:242, p. 10-105, citing *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.) “Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.*)

B. Fraudulent Inducement-Concealment (Sixth Cause of Action)

Ford asserts that it is entitled to summary adjudication of Plaintiff’s claim for fraud because he has no evidence that Ford had prior knowledge of any purported engine defect and concealed it from him

As a general matter, the elements of a claim for fraudulent inducement based on concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Marketing West, Inc. v. Sanyo Fisher (USA) Corp.* (1992) 6 Cal.App.4th 603, 612-613.)

To establish Plaintiff’s lack of evidence of Ford’s prior knowledge of an engine defect, Defendant submits Plaintiff’s responses to discovery, which it characterizes as “factually devoid.” When a defendant moves for summary judgment on the ground that a plaintiff has “no evidence” to establish an essential element of a cause of action, the defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently “has no evidence” on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* [“the absence of

evidence to support a plaintiff's claim is insufficient to meet the moving defendant's initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.”].) “Such evidence may consist of the deposition testimony of the plaintiff's witnesses, the plaintiff's *factually devoid discovery responses*, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110, emphasis added.)

Ford conducted written discovery in this matter, including propounding Special Interrogatories and Requests for Production of Documents. (UMF No. 6.) Plaintiff served responses to Ford's Special Interrogatories and produced 15 pages of documents in response to the Requests for Production, which consisted of the Retail Installment Sales Contract, one repair order from Will Tiesiera Ford dated November 20, 2023 (over one year after Plaintiff's purchase and relating to a replacement of the Vehicle's front axles), two vehicle registration cards - one from October 2024-October 2025 and one from October 2025-October 2026, Plaintiff's Certificate of Title, what appears to be a summary of Plaintiff's insurance coverage details, and an undated, online offer for the Subject Vehicle from CarMax. (UMF No. 16.)

In its discovery requests to Plaintiff, Ford asked for all facts, persons, and documents to support Plaintiff's Fraudulent Inducement-Concealment cause of action. (UMF Nos. 9-11.) As argued by Defendant, Plaintiff's responses are indeed devoid of facts, merely referring Ford to Plaintiff's Complaint² and document production. No facts are identified that indicate exclusive knowledge by Ford of the purported defects, no *specific* individuals are identified, and the documents produced by Plaintiff (see above) fail to show the same. (*Id.*) Plaintiff also responded to certain interrogatories that he was unable to completely respond because the information sought was not with his possession, custody, and/or control, and that he “require[d]” the deposition testimony and document production of Defendant's person most knowledgeable. (UMF No. 12.)

According to Ford, Plaintiff served a deposition notice for its corporate representative on March 17, 2025, which unilaterally set a deposition date without meeting and conferring with Ford as to the availability of the witness, or Ford's counsel. (UMF Nos. 14, 15.) Ford timely served its objection to the notice, setting forth its unavailability, but Plaintiff never followed up to meet and confer on alternative dates. (UMF No. 15.) Plaintiff cannot be rewarded for his lack of diligence in this regard, especially as he has not opposed Ford's motion.

The Court finds that the foregoing evidentiary showing is sufficient to meet Defendant's initial burden on this claim. Plaintiff has not filed an opposition and thus fails to establish the existence of a triable issue of material fact. Accordingly, Ford is entitled to summary adjudication of the sixth cause of action and its motion is GRANTED.

The July 16, 2026 Trial Assignment Hearing and the July 20, 2026 Jury Trial are VACATED.

² The Court notes that a party cannot rely on its own pleadings as a factual source to defeat summary judgment. (*Roman Iron Works v. Prudential Insurance Company* (1980) 104 Cal.App.3d 767, 775.)

Defendant shall prepare and submit the final order and proposed judgment, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.

- oo0oo -

Calendar Line 5

Case Name: *Ellen Anne Cleary v. County of Santa Clara, et al.*

Case No.: 25CV470803

Before the Court is Defendants County of Santa Clara's (the "County"), Jeffrey Draper ("Draper"), Andrew Walker ("Walker"), and André Neto ("Neto") (collectively, "Defendants") demurrer to the First Amended Complaint ("FAC") filed by Plaintiff Ellen Anne Cleary ("Plaintiff").

This is an action for violations of the Fair Employment and Housing Act ("FEHA") as well as whistleblower retaliation. According to the allegations of the FAC, Plaintiff, a Jewish woman who actively practiced her faith throughout her employment, commenced her employment with the County as a Deputy Director on August 21, 2023. (FAC, ¶ 11.) She alleges that during the course of her employment, she was "subjected to recurring and/or ongoing harassment, discrimination, on her gender and religious orientation or creed that was similar in kind" and that the "atmosphere was encouraged, created and participated in by Plaintiff's supervisors," which included defendants Draper and Walker. (*Id.*, ¶ 12.) Plaintiff alleges that Draper "repeatedly brought up that she would be the first female Deputy Director, and that she could be raped or taken hostage merely because she was a woman," and repeatedly made comments about Plaintiff's perceived age, which he believed to be over 40. (*Ibid.*) Draper also engaged in harassing conduct towards Plaintiff that was based on her religious orientation. (FAC, ¶¶ 28-31.)

Almost immediately after starting work, Plaintiff began experiencing gender-based harassment at her job site from defendant Neto, a co-worker, which included him making "repeated, condescending, and demeaning comments to Plaintiff solely because she was a woman, saying things like "make me a sandwich," and engaged in insubordinate behavior such as refusing to do the work Plaintiff assigned to him and speaking over Plaintiff during an "All Hands" meeting where, among other things he said to those present that Plaintiff had a "cackle like Kamala Harris." (FAC, ¶ 13.) Neto's behavior made it very difficult for Plaintiff to perform her job and caused her a great deal of anxiety and discomfort. (*Ibid.*) Walker was aware of Neto's conduct, and it was "participated [in], encouraged, facilitated, and/or ratified" by Draper. (*Ibid.*)

Plaintiff first reported the gender-based harassment to Human Resources ("HR") personnel, some of whom had witnessed said harassment against Plaintiff. (FAC, ¶ 14.) Plaintiff subsequently reported the harassment to the County's Equal Opportunity Division ("EOD"), and the later, the EOD's Whistleblower Hotline. (*Id.*, ¶ 15.) The County ignored Plaintiff's initial complaint to the EOD, and she had to raise the issue again on eight separate occasions. (*Id.*, ¶ 16.) The County refused to investigate, offering various excuses for failing to do so. (*Id.*) The EOD eventually took steps to address Plaintiff's complaint when the Chief Operating Officer became involved, and the County "provided a written acknowledgment that defendant Neto's actions were violations of the County's Policy Against Discrimination, Harassment, and Retaliation." (*Id.*, ¶¶ 17-18.) Despite the County's acknowledgment of Neto's conduct, it allowed Neto to continue coming to work at the same location as Plaintiff. (*Id.*, 19.) The County's failure to place Neto on administrative leave culminated in a screaming fit by him towards Plaintiff and, subsequent to that, him approaching her husband with a razor in the work parking lot. (*Ibid.*) Plaintiff's reporting of the incident was ignored, with Plaintiff